

HOUSE BILL 73

By Howell

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 7; Title 8; Title 13 and Title 66, relative to
historic preservation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 11, Part 1, is amended by
adding the following as a new section:

(a) Notwithstanding another law to the contrary and except as provided in
subsection (b), the Tennessee historical commission, and any other state entity other
than the state building commission engaged in the historic preservation of real property,
shall not:

(1) Approve or recommend the renovation, alteration, or demolition of
structural design elements of improved public or private real property that is or
may be of historical, architectural, or cultural significance in this state; or

(2) Take adverse action against the owner of such real property,
including the assessment of a civil or other penalty or fine.

(b) The Tennessee historical commission may only approve or recommend
alterations or renovations to the aesthetics, non-structural elements, and building design
elements of historic improved real property that is listed on the Tennessee register of
historic places created pursuant to § 4-11-201.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.